

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SHANE PETERS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. STEVEN ACEVEDO,
Shield No. 16469 (Tax Id. No. 949959), Individually and in
his Official Capacity, and POLICE OFFICERS "JOHN
DOE" #1-10, Individually and in their Official Capacity (the
name John Doe being fictitious, as the true names are
presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County as
the place of trial.

The basis of venue is:
CPLR 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 13, 2017

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. STEVEN ACEVEDO, Shield No. 16469 (Tax Id. No. 949959)
Narcotics Borough Queens
c/o 1 Police Plaza, 12th Floor
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHANE PETERS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. STEVEN ACEVEDO, Shield No. 16469 (Tax Id. No. 949959), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff SHANE PETERS, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff SHANE PETERS is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants P.O. STEVEN ACEVEDO, Shield No. 16469 (Tax Id. No. 949959), and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about June 30, 2015, plaintiff SHANE PETERS was lawfully in the vicinity of 2525 Tilden Ave., in the County of Kings, City, and State of New York,

9. At the aforesaid time and place, plaintiff was not acting any manner to illicit suspicion or reasonable cause to believe that he had committed or was about to be committing any criminal offense.

10. Nonetheless, employees of the NYPD accosted Mr. Peters, questioned him, began to search his person without permission or authority to do so – finding a legal folding utility knife, which plaintiff was legally entitled to possess for work – and then immediately placed him

in handcuffs, without any evidence of wrongdoing.

11. Despite the lack of probable cause to believe Mr. Peters had committed any crimes or infractions and the fact that Mr. Peters explained to the NYPD officers that the knife was legal and that he uses it for his job as a construction worker, the arresting officers placed Mr. Peters under arrest with his arms handcuffed tightly behind his back.

12. At no time on June 30, 2015, did defendants possess reasonable suspicion to stop, question, and/or frisk plaintiff.

13. At no time on June 30, 2015, did defendants possess probable cause to arrest plaintiff.

14. At no time on June 30, 2015, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

15. At no time on June 30, 2015 was plaintiff ever in violation of New York Penal Law Section 265.01(1) because under the law it is legally impossible for a person who possesses a legal folding utility knife to violate this law, given that the knife in question does not meet the statutory definition of a gravity knife under New York Penal Law Section 265.00(5).

16. At no time during on June 30, 2015 was plaintiff ever in violation of any of the proscriptions of New York Penal Law Section 265.01(1), the applicable law governing the possession of illegal gravity knives.

17. Thereafter, said officers placed Mr. Peters in a police vehicle and transported him to a nearby police precinct where he was photographed, confined in a holding cell for approximately between three (3) and five (5) hours, and charged with Criminal Possession of a Weapon before he was released with a Desk Appearance Ticket.

18. At no time on June 30, 2015 did plaintiff commit any crime or violation of law to

justify his arrest, seizure, detention, the issuance of a Desk Appearance Ticket, or prosecution.

19. At no time on June 30, 2015, did defendant possess an illegal gravity knife or behave unlawfully in any way.

20. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office – namely, defendant ACEVEDO falsely informed prosecutors that he had observed plaintiff in possession of a gravity knife and that he recovered said gravity knife from plaintiff's hand, and, further falsely stated that he was able to open the gravity knife through centrifugal force which caused the blade to lock in place by means of a lever, spring, button, or other device.

21. Thereafter, defendants repeatedly gave the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

22. As a result of his unlawful arrest, plaintiff SHANE PETERS spent approximately between three (3) and five (5) hours in custody until he was released with a Desk Appearance Ticket.

23. Thereafter, as a result of his unlawful arrest, plaintiff was forced to make approximately one (1) court appearance until all charges against him were adjourned in contemplation of dismissal on October 23, 2015.

24. In addition, as a result of his unlawful arrest Mr. Peters missed approximately one (1) day of work.

25. As a result of the foregoing, plaintiff SHANE PETERS sustained, inter alia, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF**
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

27. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

28. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

29. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

31. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

33. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

34. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

36. Defendants created false evidence against plaintiff.

37. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office.

38. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

39. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

40. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
UNLAWFUL SEARCH AND SEIZURE UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

45. Defendants caused plaintiff to be arrested in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest was not based on probable cause or any legitimate basis under the law in violation of the constitutional rights of plaintiff.

46. Defendants caused plaintiff to be arrested in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest was not based on probable cause or any legitimate basis under the law and knowing that plaintiff would be

required to appear in court to be prosecuted under the aforementioned unconstitutional arrest in violation of the constitutional rights of plaintiff.

47. The acts complained of were carried out by the aforementioned individual defendants and subordinate officers of the NYPD officers, including P.O. STEVEN ACEVEDO, Shield No. 16469 (Tax Id. No. 949959), and P.O. "JOHN DOE"'s #1-10 in their capacities as NYPD officers and officials, with all the actual and/or apparent authority attendant thereto.

48. The acts complained of were carried out by the aforementioned individual defendants and subordinate NYPD officers, including P.O. STEVEN ACEVEDO, Shield No. 16469 (Tax Id. No. 949959), and P.O. "JOHN DOE"'s #1-10 in their capacities as NYPD officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and NYPD, all under the supervision of other ranking officers of said departments.

49. The pattern of unconstitutional arrests established by policy-making officials within the NYPD and the City of New York, the failure to train officers and employees regarding the distinctions between legal folding or utility knives and illegal gravity knives, and the failure to supervise and/or discipline staff responsible for the unconstitutional arrests are so institutionalized as to represent a policy or custom of unconstitutional violations that have resulted in the deprivation of plaintiff's rights.

50. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, the NYPD include, but are not limited to, the following unconstitutional practices:

- a) Explicitly and/or implicitly establishing a policy of falsely arresting and selectively prosecuting individuals who possess legal folding or utility knives in order to intimidate and harass individuals who carry them;

- b) Making arrests without probable cause or any legal basis in order to promulgate the policy of selectively prosecuting individuals who possess legal folding or utility knives;
- c) Disproportionately arresting individuals who possess legal folding or utility knives while allowing retail and corporate interests that sell these knives to remain free from false arrest and prosecution, in violation their rights under the Equal Protection Clause;
- d) Showing deliberate indifference to whether the arrests made pursuant to that were made based on probable cause or with the proper application of the New York Penal Law;
- e) Showing deliberate indifference to the training of subordinate officers to not arrest individuals unless they are arrested upon probable cause or a basis under the law in accordance with the proper standards under the New York Penal Law;
- f) Showing deliberate indifference to training officers as to the difference between gravity and non-gravity knives;
- g) Having no check or balance in place to verify the legality of these knives;
- h) Showing deliberate indifference to the supervision of subordinate officers in the NYPD for the arrests in determining whether the alleged "gravity knives" were legitimate;
- i) Making the aforementioned arrests notwithstanding clearly established law prohibiting them; and/or
- j) City policymakers continued constructive acquiescence to repeated and continuing constitutional violations of individuals who are being illegally arrested and prosecuted; and
- k) Arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- l) Arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- m) Fabricating evidence in connection with their prosecution in order to cover up police misconduct.

51. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as is the case with the plaintiff in

this matter, as well as the NYPD's own statistics and statistics and reports maintained by other City Agencies.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

54. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

55. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York, and NYPD, plaintiff was arrested without probable cause or any legal basis and was subjected to detention, search, restraints, handcuffing and verbal and mental abuse in violation of his constitutional rights.

56. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York, and NYPD, plaintiff was caused to appear in court to be prosecuted on this unconstitutional arrest and was caused to lose time from work in violation of his constitutional rights.

57. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York, and NYPD, plaintiff was targeted, stopped, and unconstitutionally arrested based on an improper motivation under the Equal Protection Clause of the Fourteenth Amendment.

58. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

59. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

60. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
July 13, 2017

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff SHANE PETERS in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not currently residing within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
July 13, 2017

_____/S_____
ILYSSA S. FUCHS